

		Pursuant to Code of Civil Procedure section 1048 and California Rules of Court, rule 3.350, Defendant Norma Iniguez's Motion to Consolidate the following two cases is GRANTED: 1. Roberto Barajas v. Norma Iniguez, OCSC Case No. 30-2024-01422858, filed on 08/29/2024. 2. Norma Iniguez v. Roberto Barajas, OCSC Case No. 30-2025-01474457 filed on 04/10/2025. The court finds that all procedural requirements set forth in California Rules of Court, rule 3.350 are met. Moreover, the court finds that the actions involve common questions of law and fact such that the interests of the parties and the court would be best served by consolidating the cases. (See Code Civ. Proc., § 1048.) Moreover, pursuant to California Rule of Court, rule 3.13321, the Court finds that the factors set forth in California Rules of Court, rule 3.1332 weigh in favor of continuing trial and therefore the request to continue the 10/12/2026 trial date is GRANTED. (Cal. Rules of Court, rule 3.1332.) Trial is CONTINUED to April 12, 2027 at 9 a.m. <i>Moving party to give notice.</i>
105	Peltekci vs. Jaguar Land Rover North America, LLC, 23-01357182	Plaintiffs JOHN PELTEKCI and CHRIS PELTEKCI move for an award of attorney fees under the "lodestar" method in the amount of \$44,620.00. Plaintiffs also request a modest "lodestar" multiplier/enhancement of 1.5x, in the amount of \$22,310.00, for a total of \$66,930.00 in attorney fees. The total amount requested by this motion is \$66,930.00. Moving party also requests costs in the amount of \$3,025.75. The plain wording of section 1794, subdivision (d) requires the trial court to base the prevailing buyer's attorney fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. (<i>Hanna v. Mercedes-Benz USA, LLC</i> (2019) 36 Cal.App.5th 493, 506.) Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the

		burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (<i>Hanna, supra</i>, 36 Cal.App.5th at p. 507) In affirming, the Court of Appeal indicated in <i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 32 as modified (Oct. 11, 2019): "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (569 <i>East, supra</i>, 6 Cal.App.5th at p. 437, 212 Cal.Rptr.3d 304; see <i>Mountjoy, supra</i>, 245 Cal.App.4th at p. 272, 199 Cal.Rptr.3d 495 ["`a reasonable hourly rate is the product of a multiplicity of factors [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case" ' "].)" [<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, as modified (Oct. 11, 2019)] Also, in <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240 the Court of Appeal affirmed the trial Court's reduction of attorney's rate to \$350 an hour where there were multiple time keepers at differing rates. This case appears to give this Court authority to reduce the fees to a reasonable hourly rate. <i>Relevant History</i> On or about February 11, 2018, Plaintiffs leased a new 2018 Land Rover HSE, VIN: SALGS2SVXJA383799 from Jaguar Land Rover Newport Beach in Newport Beach, California. The Vehicle's odometer at lease read 36 miles. The total lease payments over the 39-month lease, including Plaintiffs' cash down payment of \$7,500.00 was \$68,294.86. According to the Complaint, the Vehicle was delivered to Plaintiffs with serious defects and nonconformities under the warranty and developed other serious defects and nonconformities under the warranty. (Complaint¶10, 13.) 10/17/2023 Plaintiff filed this lawsuit alleging causes of action for: 1. VIOLATION OF SONG-BEVERLY ACT - BREACH OF EXPRESS WARRANTY 2. VIOLATION OF SONG-BEVERLY ACT - BREACH OF IMPLIED WARRANTY 3. VIOLATION OF SONG-BEVERLY ACT – SECTION 1793.2 4. NEGLIGENT REPAIR
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		11/22/2023 Defendants JAGUAR LAND ROVER NORTH AMERICA, LLC and ANAHEIM HILLS JAGUAR LAND ROVER, INC. dba LAND ROVER ANAHEIM HILLS filed an Answer to the Complaint. 02/01/2024 CMC, the Court indicated, "Counsel are directed to the Court's website and are ordered to review this Court's Voluntary Stipulation re: Discovery in Song-Beverly Cases. If counsel are agreeable, they may submit the signed stipulation for this court to review." 5/31/2024 a Stip and Protective Order signed. 7/17/2024 Plaintiff filed a Motion to Compel Further re: RPDS, Set 1 which was granted in part and sanctions ordered on 1/9/2025. 11/22/2024 Plaintiff filed a Motion to Compel Deposition of PMQ which was denied on 1/16/2025. 2/19/2025 a Notice of Settlement was filed. 3/24/2025 a Memo of Costs was filed by Plaintiff in the total amount of \$3,025.75. Almost a year after the case settled, on 2/13/2026, this Motion was filed. In sum, Plaintiffs request \$66,930.00 in fees for a case which involved a complaint, basic discovery; one discovery motion which was ruled upon (with mixed results), and another discovery motion which was denied. Notably, no motions were filed to attack the pleadings, no depositions took place, and no vehicle inspection took place. There was absolutely nothing complex about this routine lemon law case. Rather, the discovery propounded, motions filed, and result obtained, all appear very characteristic of the scores of lemon law cases this Court has encountered. <i>Lodestar</i> Civil Code section 1794, subdivision (d) requires the attorney fees to be based on "actual time expended" and to have been "reasonably incurred." <i>Hourly Rate</i> "The reasonable hourly rate is that prevailing in the community for similar work...The relevant 'community' is that where the court is located. (citations omitted). [<i>Altavion, Inc.</i>
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v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71–72.]

Plaintiff's prosecution team consisted of five attorneys and three paralegals (Decl. of Wirtz¶16.)

1. Senior Attorney Rotman (licensed in 2012, \$600 an hour)
2. Senior Attorney Underwood (licensed 2015, \$600 an hour)
3. Associate Attorney Gonzales-McCaulley (graduated with her JD from California Western School of Law in April 2023, \$450 an hour),
4. Associate Attorney Bootwala (graduated with her JD from University of San Diego School of Law in May 2025, \$450 an hour)
5. Associate Attorney Schwartz, earned her law degree from the University of Wisconsin Law School in 2008, \$450 an hour)
6. Associate Attorney Mellgren, Juris Doctor in 2022 from the University of San Diego, \$450 an hour)
7. Senior Managing Paralegal Evans (completed the ABA-Approved Paralegal Program at the University of San Diego in 2015, \$300 an hour)
8. Paralegals Lizarraga (completed the ABA-Approved Paralegal Program at the University of San Diego, graduating in 2022, \$250/hour.)
9. Ms. Zaki (completed the ABA-Approved Paralegal Program from UCSD in June 2023, \$250 an hour)

Defendant argues that based on LASC cases a reasonable hourly rate for this case would be only about \$375 to \$525 per hour, and not \$600 per hour.

The Court declines Defendant's invitation to reduce the hourly rate.

Number of Hours

Exhibit 1 attached to the Declaration of Wirtz establishes that the Plaintiffs' attorneys spent 112.6 hours on this case, which includes the anticipated time for this motion.

Defendant, apparently not wanting to take the time to go through the billing statements and provide objections, simply argues that a "general observation" alone should warrant a large reduction of Plaintiff's fee request. That is, Defendant does not provide the Court with any portions of the bill that are padded, repetitive, etc. Indeed, Defendant does not even tell the Court the total hours it deems reasonable. Rather, Defendant simply argues, "Plaintiff's counsel's total base attorney fees of \$44,620.00 are excessive and should be cut. A reasonable fee award would be \$25,000 without a fee

		multiplier. And again, this is a case with no expert depositions and no trial and one that presented no questions of first impression and no unique or extraordinary law and motion practice.” (Opposition page 8:24-27.) As such, Defendant’s opposition is not helpful to this Court’s analysis. Based on the Court’s review of the 311 pages of documents associated with the Declaration of Wirtz, and the grid on page 2-3 of the Motion, the Court concludes the following hours are simply excessive given the nature and complexity of the case, and likelihood that most, if not all of the discovery, pleadings, meet and confer letters, etc. were cut and pasted. Written Discovery – Requests 3.3 hours (reduce by 1 hour) Meet and Confer --Requests 8.4 hours (reduce by 4 hours) Deposition – Dealers --Requests 4.0 hours (Reduce by 3 hours) Motion to Compel Written Discovery-- Requests 8.1 hours (reduce by 8.1 hours, sanctions were already awarded) Motion to Compel Deposition—Requests 14.7 (reduce by 10.7 hours. Motion was denied. Other motions were never heard.) Client Communication--Requests 22.5 hours (this is grossly inflated. Reduce by 10 hours). <i>Multiplier</i> Plaintiff seeks a multiplier of 1.5x which is denied as unnecessary. All in all, Plaintiff’s motion is GRANTED, but reduced based on the above. Plaintiff requests costs in the amount of \$3,025.75, which are GRANTED. Defendant did not file a Motion to Tax/Strike Costs, nor did it object to the costs sought by Plaintiff. Plaintiff is ordered to provide a proposed Order which takes the above reductions in rates and time into consideration and makes the calculations accordingly. Defendant has 5 days to submit any objection thereto. <i>Plaintiff to give notice.</i>
106	Maldonado vs. City of Garden Grove, 24-01385594	Defendant LFA GROUP, LLC (“Defendant”) will ask the Court to compel Plaintiff MARISOL MALDONADO (“Plaintiff”) to serve further responses to Defendant’s Second Set of Form Interrogatories and will further move this Court for an order requiring Plaintiff to pay a monetary sanction to Defendant. Defendant’s Form Interrogatories (Set Two) were served 11/4/2025. (Decl. Howard¶11.) Responses were due December 8, 2025. (Id.) After an extension was granted, Plaintiff served responses on December 15, 2025. (Id.¶13.) On 1/28/2026, Defendant’s counsel telephonically met and